

URGENT: E-BIKE REGULATIONS

NSW COMPLIANCE & PARENTAL LIABILITY GUIDE 2026

CRACKDOWN ACTIVE (MAR 2026): NON-COMPLIANT BIKES SUBJECT TO SEIZURE AND DESTRUCTION.

1. THE COMPLIANCE RULE & KEY DATES

Under the **Road Rules 2014**, any e-bike used in public must be an EPAC (Electrically Power Assisted Cycle).

- **1 Feb 2026:** All new e-bikes sold in NSW must carry a Fair Trading **Certificate of Approval**.
- **1 Mar 2026:** Power limit dropped 500 W → **250 W**. Grace period for existing 500 W owners until **1 Mar 2029**.
- **24 Mar 2026: Road Transport Amendment Bill 2026** enacted — Police can seize and crush illegal e-bikes.
- **1 Mar 2029:** Grace period ends. All e-bikes must comply with **EN 15194**. No exceptions.
- **Rating > 250W (new):** Legally a **Motorcycle**. Riding without registration/insurance/licence is a criminal offence.

2. SEIZURE & RETAILER ACCOUNTABILITY

Pursuant to the **Road Transport Amendment (Non-registrable Motor Vehicles) Act 2026**:

- **Seizure & Crush:** Non-compliant bikes can be seized and **destroyed** with no return option.
- **Retailer Warning:** Selling motorbikes as “legal e-bikes” breaches **Australian Consumer Law**. Report to Fair Trading.
- **Dyno Testing:** NSW Police use portable roadside Dyno units to verify motor cuts out at 25 km/h.

PENALTIES AT A GLANCE

Unregistered Vehicle: \$686–\$2,200
Uninsured Vehicle: \$686–\$5,500
Unlicensed Rider: Court Attendance
Footpath Speeding (>10 km/h): Up to \$2,200
Destruction Order: Final (No Appeal)

QUICK COMPLIANCE CHECK

- ☐ Is the motor rated 250 W or less?
- ☐ Does motor assist cut out at 25 km/h?
- ☐ Does it have a Fair Trading Certificate of Approval?
- ☐ Is the rider wearing an approved helmet?
- ☐ (From 2029) Does it carry an EN 15194 mark?

PARENTS: IS YOUR HOME AT RISK?

If an underage rider causes an accident on an illegal e-bike:

1. **NO INSURANCE:** Home policies exclude “unregistered motor vehicles.” Illegal e-bikes fall under this category.
2. **PERSONAL LIABILITY:** Parents can be sued for millions in medical costs and damages.
3. **ASSET LIQUIDATION:** Your house, savings, and assets can be seized to pay legal debts.

3. FEDERAL IMPORT & OFF-ROAD USE

The **Road Vehicle Standards Act 2018** restricts high-powered e-motorbikes.

- **Off-Road Only:** Motors over 250 W are strictly for **Private Property** and cannot be registered for road use.
- **Federal Import Ban (Dec 2025):** The Federal Government banned import of e-bikes not meeting EN 15194.
- **No Loophole:** All public road use of >250 W bikes ceases 1 Mar 2029 regardless of purchase date.

OFFICIAL STATUTORY REFERENCE | TRANSPORT FOR NSW
www.transport.nsw.gov.au/roadsafety/ebikes nsw.gov.au **E-Bike FAQs**
For educational purposes only. Always refer to current NSW legislation for definitive law.